

to amend a divisional application to bring it in line with the requirements of Art. 76(1) EPC (G 1/05, OJ 2008, 271).

If a divisional application is amended, it must meet **both the requirements of Art. 76(1) EPC and those of Art. 123(2) EPC**, so as to preclude the introduction of new subject-matter into the examination proceedings (see, among many others, G 1/05, OJ 2008, 271; T 284/85; T 441/92; T 873/94, OJ 1997, 456; T 1221/97; T 1008/99; T 561/00; T 402/00; T 423/03).

In T 2327/18 the board rejected the argument made by the respondent (patent proprietor) that, in accordance with G 1/05 and G 1/06 (OJ 2008, 271 and 307), bringing the application into line with the requirements of Art. 76(1) EPC had to be given priority over compliance with Art. 123(2) EPC. What those decisions had in fact made clear was that Art. 123(2) EPC was equally applicable to amendments to a divisional application as to amendments to any other application. In the case at issue, this meant that deleting a disclaimer which was not in the parent application as originally filed but was in the divisional application as originally filed was not allowable (because it was incompatible with Art. 123(2) EPC; see chapter II.E.1.).

2.3. Subject-matter of a patent granted on a divisional application

2.3.1 Findings of G 1/05 and G 1/06 also applicable to granted patents

The findings of the Enlarged Board of Appeal in G 1/05 (OJ 2008, 271) and G 1/06 (OJ 2008, 307), although made in regard to patent applications, are also valid for granted patents. This can be derived from the fact that the Enlarged Board of Appeal relied on a direct correspondence between Art. 76(1) and 123(2) EPC, both articles enshrining the same principles, and that Art. 123(2) EPC applied to both patent applications and patents (T 265/05). Thus, in order to meet the requirements of Art. 100(c) EPC 1973, it was a necessary and sufficient condition that anything disclosed in the granted patent had to be directly and unambiguously derivable not only from the application on which the patent had been granted, but also from what was disclosed in each of the preceding applications as filed (T 687/05, T 549/09, T 2175/09, T 1283/12).

2.3.2 Ground for opposition under Article 100(c) EPC

In T 475/02 the board had to decide whether the patent fulfilled the requirements of Art. 100(c) EPC. Since the opposed patent was granted on a divisional application, for the subject-matter of any claim as granted to be allowable, it had to pass both of the **two tests** of this provision: (i) the subject-matter must not extend beyond the content of the divisional application as filed; and, (ii) it must not extend beyond the content of the earlier application as filed. Whether the first test was passed depended only on the particular claim and on the content of the divisional application as filed. That the subject-matter of a claim passed the second test did not necessarily mean that it passed the first, and vice-versa. The two tests needed separate consideration, in particular where the divisional application as filed did not include the complete text (both description and claims) of the parent application.

In T.806/03 the opposition division had applied the first test of Art. 100(c) EPC to "the application as originally filed, which is the parent application" and decided that Art. 123(2) EPC had not been complied with. The board held that the reference to the wrong provision made no difference with regard to the substance of the opposition division's decision, since the descriptions of the parent application and of the divisional application as filed were identical.

In T.2233/09 the board held that Art. 100(c) EPC contained two distinct legal grounds: Art. 76(1) EPC and Art. 123(2) EPC. Since no objections with respect to Art. 76(1) EPC had been raised during the opposition proceedings, such a **new legal ground** could be introduced in the appeal proceedings only with the consent of the patent proprietor.

2.3.3 Ground raised against amended claims in opposition proceedings

In T.1975/09 the board held that Art. 100(c) EPC – and not Art. 76(1) EPC – would have been the correct provision to cite in the decision of the opposition division when the claims of the granted patent were considered. With respect to amendments made to the claims in the course of the opposition proceedings, Art. 101(3)(a) and (b) EPC required the opposition division to form an opinion on whether or not the patent and the invention to which it related met the requirements of the Convention. Art. 76(1) EPC related to a requirement for filing a divisional application, which was not a requirement under the Convention for an (amended) patent. Therefore, the requirement of Art. 123(2) EPC, although not explicitly referring to the content of the "earlier application(s)", was the corresponding requirement of the Convention within the meaning of Art. 101(3) EPC, to be met by the patent in relation to amendments made thereto, with respect to the content of the earlier and of the divisional application(s) as filed. See however e.g. T.2371/18, T.2490/18, T.3272/19 of 11 February 2021, which apply Art. 76(1) EPC to claims amended in opposition (appeal) proceedings.

2.4. Link between subject-matter of earlier application and divisional application

2.4.1 No abandonment of subject-matter in earlier application if divisional is filed

In T.118/91 the respondent argued that since a divisional application was filed, the subject-matter of the divisional must be considered to have been abandoned in the parent application. The board held that there was nothing in Art. 76 EPC 1973 or any other provision of the EPC to support that contention: the content of the application as filed cannot, as a matter of logic, be reduced by the subsequent filing of a divisional application.

2.4.2 No effect on content of divisional application if earlier application was refused

In T.441/92 the parent application was refused by a decision of the examining division (which became final after the appeal was held inadmissible) after the divisional application had been filed. The board held that the lapse of the parent application cannot have the effect of reducing the content of a previously filed divisional application.

2.4.3 Final decision on subject-matter in the parent application or a sibling application – res judicata

a) Decisions affirming cross-procedural res judicata effect

In T. 51/08 the appellant submitted amended claims corresponding to the second auxiliary request of the parent application which had already been refused on appeal. The board held that subject-matter on which a final decision had been taken by a board of appeal in the parent application became res judicata and could not be pursued in the divisional application (see also T. 790/10, see however also T. 2145/11, in which the board distinguishes its case from T. 51/08 as the claims at issue were not identical to those in the proceedings related to the parent patent).

In T. 1155/13 an objection of lack of sufficiency was raised by the appellant against the patent based on a divisional application. The board considered, however, that T. 468/09 had dealt with an insufficiency objection in relation to the patent granted on the basis of the parent application. Since decision T. 468/09 was res judicata and dealt with insufficiency of disclosure in relation to the same embodiments, and the facts were the same, the current board had no power to examine this objection again (with reference to T. 51/08).

b) Decisions leaving open the question of cross-procedural res judicata effect

In T. 1643/10 the board left open the question of whether, or to what extent, decisions regarding a parent or a sibling application represent res judicata for a divisional application. For the board in T. 1666/14 too, there was ultimately no need to answer this question because the claims at issue in the examination appeal proceedings brought before it in relation to the divisional application differed from those decided on in the earlier opposition appeal proceedings concerning the parent application. It nevertheless took the view that, where decisions had been taken on a parent application in both examination appeal and opposition appeal proceedings, only the latter decision could, if at all, have binding effect on the relation between the parent and divisional application. See also T. 2145/11, T. 1870/16 and T. 1270/20, in which the boards similarly held there could be no res judicata because the claims were not identical.

c) Decisions doubting cross-procedural res judicata effect

In T. 2084/11 the appellant (opponent) had argued that the invention's reproducibility was res judicata, a final decision having already been taken on the parent application. The board noted that the EPC did not mention res judicata, let alone regulate its applicability in the context of separate proceedings on parent and divisional applications or any resulting patents. EPO proceedings on a divisional were essentially independent of those on its parent (see T. 1254/06). The board therefore doubted that a final decision taken in opposition appeal proceedings (here revocation of the patent) could have any "cross-procedural" res judicata effect at all on separate opposition (or opposition appeal) proceedings concerning a patent granted on a divisional. T. 167/93 had already said that res judicata, whilst a generally recognised principle, was of extremely narrow scope and

would only "involve something" where (amongst other criteria) "the issues of fact are the same". But it had said nothing about any "cross-procedural" application. In the case in point, the board anyway took the view that the above criterion from T 167/93 was clearly not fulfilled, because the subject-matter (the "something" in the sense of T 167/93) requiring the division's or board's decision was not the patent granted for the parent application; rather, it was the divisional-derived patent and whether the requests submitted were legally sustainable in view of the objections raised, and – in contrast to T 51/08 – the requests (sets of claims) for decision in the two sets of proceedings were also not identical. Moreover, the underlying facts were different since further evidence had been submitted. The board's conclusion was that in the case in hand the appeal decision on the parent patent could have no *res judicata* effect in the opposition (or opposition appeal) proceedings as regards the reproducibility of the divisional-derived patent in suit.

2.4.4 Re-filing of same subject-matter

In T 1287/07 the appellant had submitted before the board that re-filing the same subject-matter comprised in an earlier divisional application which had been withdrawn and converted into a national right was an abuse of procedure. The board clarified that this re-filing did not fall within the grounds for opposition exhaustively listed in Art. 100 EPC, and there was no legal basis for revoking the patent in suit on this basis. Therefore, the alleged re-filing of the same subject-matter could not result in the revocation of the patent in suit.

In T 1437/10 the appellant filed new requests during oral proceedings which claimed subject-matter essentially identical to the scope of protection of the granted European patent for which the appellant was the proprietor and for which the application at issue was the earlier application in accordance with Art. 76(1) EPC. Consequently, the subject-matter of the new requests had already been decided in favour of the appellant and a second decision on the same subject-matter was superfluous. The board therefore exercised its discretion under Art. 13(1) RPBA so as not to admit the new requests into the procedure.

On the related issue of "double patenting" see in this chapter II.F.5. below.

3. Filing a divisional application

3.1. Right to file a divisional application

3.1.1 Applicant of earlier application entitled to file divisional application

In J 20/05 the Legal Board held that only the applicant of the earlier (parent) application was entitled to file the divisional application. It stated that, fundamentally, it is the entitlement acquired by virtue of the parent application that gives the right to file a divisional application. This means that the rights in respect of the divisional application derivable from the parent application extend to, but are also limited to, the rights existing in the parent application at the filing date of the divisional application. The entitlement to file a divisional application under Art. 76 and R. 25 EPC 1973 (now R. 36 EPC) was a

procedural right that derived from the applicant's status as applicant in the earlier application (with reference to J. 2/01).

In J. 34/86 the Legal Board allowed an application to be filed as a divisional application by a party other than the registered applicant for the parent application. This case concerned, however, a particular set of circumstances. The applicant for the parent application had been ordered by a US court to assign all property rights in the invention to the person who became the applicant for the divisional application, and the applicant for the parent application had already signed an assignment to that effect.

3.1.2 Filing of divisional application during stay of proceedings

In J. 20/05 application proceedings had been suspended under R. 13 EPC 1973 (now R. 14 EPC) because of pending national entitlement proceedings. The Legal Board decided that the applicant was not entitled to file a divisional application relating to that application while the proceedings remained suspended (confirmed in G. 1/09, OJ 2011, 336).

In J. 9/12 the Legal Board added that to allow the filing of a divisional application by an applicant whose entitlement was challenged would be inconsistent with and contrary to the fundamental objective of R. 14(1) EPC, which was to preserve any potential rights a third party might have to the grant of a patent for the earlier application in dispute.

3.1.3 Joint applicants

In J. 2/01 (OJ 2005, 88) the Legal Board held that joint applicants could not acquire a procedural status different from that of a single applicant, because otherwise each of them could perform different and contradictory procedural acts, including the filing of different versions of the patent to be granted. Therefore, where an application (the "earlier application") had been filed jointly by two or more applicants and the requirements of Art. 61 or R. 20(3) EPC 1973 (now R. 22(3) EPC) had not been met, the right to file a divisional application in respect of the earlier application under Art. 76 EPC 1973 was only available to the registered applicants for the earlier application jointly and not to one of them alone or to fewer than all of them.

3.1.4 No obligation to postpone a decision to allow the filing of a divisional application

In T. 1184/03 the appellant requested during the oral proceedings before the board that the delivery of the decision be postponed with a view to filing a divisional application. Since the case was ready to be decided at the oral proceedings, the board held that postponing the decision of the board to allow the filing of a divisional application would run counter to the public interest in having the matter decided as expeditiously as possible, because the matter ready to be finally decided by this board would be pending again. See also T. 592/15, in which the board observed that requests forcing a board to examine questions outside of the framework of the given appeal were not admissible (T. 502/02). Thus, the board refused the applicant's request that the "application be maintained pending until [a] divisional application has been filed".